

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BRIAN MILUS, CHEKANNO AUPONT, AYA
BOULHOUJAT, FRANTZ NERETTE JR., OLIVIER
JEAN LOUIS, AHMED HEGAZY, SABRINA SLADE,
Parent & Natural Guardian of M.P., DIANA ALVAREZ,
Parent & Natural Guardian of K.I., IWONA KUBICKA,
Parent & Natural Guardian of V.K., MONA IBRAHIM,
Parent & Natural Guardian of S.S.,

SUMMONS

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

Plaintiff designates Kings
County as the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER
JELINSON MARTINEZ, Shield No. 301, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 14, 2019

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND
ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
JELINSON MARTINEZ, Shield No. 301, 62 Precinct, 1925 Bath Avenue,
Brooklyn, NY 11214

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Parent & Natural Guardian of S.S.,

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JELINSON MARTINEZ, Shield No. 301, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.

----- X

Plaintiffs, by their attorneys, Caitlin Robin & Associates, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 12, 2019, at approximately 3:30 p.m., plaintiff's Brian Milus, Chekanno Aupont, Aya Boulhoujat, Frantz Nerette Jr., Olivier Jean Louis, Ahmed Hegazy, M.P., K.I., V.K., and S.S. while lawfully present inside 1865 Bath Avenue, a retail store, in Brooklyn, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the Defendant New York City police officers. In addition, Plaintiff Brian Milus and Chekanno Aupont were subjected to an assault, battery, and use of excessive force by the defendant officers when the defendant police officer forcibly pushed Plaintiffs to the ground and caused physical injury. Plaintiffs were then unlawfully imprisoned at the 62nd Precinct and Brooklyn Central Booking for approximately 72 hours until most Plaintiffs were released from Central Booking with no charges pending. Plaintiffs Aya Boulhoujat, S.S., and V.K., were arraigned in Criminal Court, charged with crimes they did not commit, and released on their own

recognizances. Plaintiffs S.S., V.K., and A.B. were denied the right to due process and a fair trial until the marijuana charges against plaintiffs were dismissed and sealed on or about April 12, 2019. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned

2. Defendants denied Plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BRIAN MILUS is a resident of the state of New York.
3. Plaintiff CHEKANNO AUPONT is a resident of the state of New York.
4. Plaintiff AYA BOULHOJAT is a resident of the state of New York.
5. Plaintiff OLIVIER JEAN LOUIS is a resident of the state of New York.
6. Plaintiff AHMED HEGAZY is a resident of the state of New York.
7. Plaintiff M.P. is a resident of the state of New York.
8. Plaintiff K.I. is a resident of the state of New York.
9. Plaintiff V.K. is a resident of the state of New York.
10. Plaintiff S.S. is a resident of the state of New York.
11. POLICE OFFICER JELISON MARTINEZ, Shield No. 301, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
12. POLICE OFFICER JELISON MARTINEZ, Shield No. 301, was at all times relevant herein, assigned to the 62ND Precinct.
13. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
14. Police Officers John Does #1-10 are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On February 12, 2019, at approximately 3:30 p.m., Plaintiffs were lawfully present inside a retail store at 1865 Bath Avenue, in Brooklyn, New York.

23. Plaintiffs were playing video games and hanging out, legally and lawfully, inside the establishment when the Defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested plaintiffs without probable cause or legal justification.

24. Defendants, specifically, came into the location, with guns drawn, vests on, masks on, and no NYPD shields out, and ordered everyone to get on the ground.

25. At no point did Defendants say they were "Police."

26. Plaintiffs, scared, and thinking the store was being robbed, all ran.

27. Plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, and K.I., all ran out the side door.

28. Plaintiffs Aya Bouljoujat, V.K., and S.S., ran downstairs.

29. When Plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, and K.I. got outside, 5-10 additional John Doe Police Officers were waiting, in uniform, with guns drawn.

30. Defendant John Doe Officers ordered Plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, and K.I., to the ground.

31. Plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, and K.I., complied and got on the ground.

32. Defendants forcibly threw Plaintiffs Chekanno Aupont and Brian Milus to the ground, causing physical injury to their knees and backs.

33. One Defendant Police Officer slipped and almost shot Plaintiff Brian Milus.

34. The Defenant Police Officer then made a joke that he almost killed Plaintiff Brian Milus.

35. Plaintiff Brian Milus was scared for his life.

36. Plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, and K.I., were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

37. At no time relevant herein did plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse plaintiffs of committing a crime or violating the law in any way.

38. Plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, and K.I., were then transported to the 62nd Precinct.

39. Plaintiffs Aya Bouljoujat, V.K., and S.S., who had run downstairs and not outside, were also ordered to the ground by Defendant Police Officers, in the basement of 1865 Bath Avenue.

40. Plaintiffs Aya Bouljoujat, V.K., and S.S., were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

41. Plaintiffs Aya Bouljoujat, V.K., and S.S. were then transported to the 62nd Precinct.

42. At no point did defendants recover any drugs, weapons, or other illegal contraband from plaintiffs or from a location that was in plaintiff's possession, custody or control.

43. Nevertheless, all plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

44. While at the 62nd Precinct against their will, plaintiffs were unlawfully photographed, fingerprinted and detained in a holding cell.

45. While at the 62nd precinct, Plaintiffs continually and repeatedly asked why they were being arrested, but Defendants refused any information.

46. All Plaintiffs were 18 years old or younger, and were all denied a phone call to their parents for the entirety of February 12, 2019.

47. All Plaintiffs were kept in holding cells at the 62nd Precinct for the entirety of February 12, 2019.

48. All Plaintiffs were denied food and bathrooms for the entirety of February 12, 2019.

49. All Plaintiffs were kept in holding cells at the 62nd Precinct for the entirety of February 13, 2019.

50. All Plaintiffs were kept in holding cells at the 62nd Precinct for the entirety of February 14, 2019.

51. On February 15, 2019, Plaintiffs Frantz Nerette Jr., Marshall Pierce, K.I., and Chekanno Aupont were released directly from the 62nd Precinct with no charges.

52. On February 15, 2019, Plaintiffs Brian Milus, Ahmed Hegazy, Olivier Jean Louis, S.S., V.K., and Aya Boulhoujat were transported from the 62nd Precinct to Central Booking.

53. On February 15, 2019, Plaintiffs Brian Milus, Ahmed Hegazy, Olivier Jean Louis were released from Central Booking with no charges when the King's County DA's office declined to prosecute their cases.

54. Plaintiffs Brian Milus, Ahmed Hegazy, Olivier Jean Louis never saw a Judge.

55. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information that plaintiffs committed a crime.

56. Specifically, the defendant police officers falsely stated to the District Attorney's Office that plaintiffs were engaged in criminal possession of marijuana.

57. On February 15, 2019, at approximately 8:00pm, Plaintiffs V.K., S.S., and Aya Boulhoujat were arraigned in Kings County Criminal Court, charged with crimes that the defendant officers had no basis to alleged that they committed and were released from custody.

58. Thereafter, on or about April 12, 2019, all charges against plaintiffs V.K., S.S., and Aya Boulhoujat were dismissed.

59. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying plaintiffs the right to due process and a fair trial

60. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

61. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiffs rights to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

63. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

64. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

66. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

70. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiffs freedom of movement through means intentionally applied.

72. The conduct of defendants in stopping, frisking, and searching plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

73. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

76. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiffs freedom of movement through means intentionally applied.

78. Defendants lacked probable cause to search plaintiffs.

79. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

83. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein

84. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

85. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

86. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

87. In withholding/creating false evidence against plaintiffs, and in providing/withholding information with respect thereto, defendants violated plaintiffs constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

88. As a result of the foregoing, plaintiffs, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants owed a duty of care to plaintiffs.

94. To the extent defendants claim that the injuries to plaintiffs by the defendant police officers was unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by injuring Brian Milus and Chekanno Aupont.

95. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

96. All of the foregoing occurred without any fault or provocation by plaintiffs.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

100. The plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The use of excessive force by defendants by, amongst other things, by slamming plaintiffs to the ground constituted objectively unreasonable physical seizures of plaintiff in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

102. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Assault

103. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and

intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, that such acts caused apprehension of such contact in the plaintiffs.

105. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

109. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiffs, when they, in a hostile and/or offensive manner handcuffed plaintiff excessively tightly without their consent and threw Plaintiffs to the ground with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

111. As a direct and proximate result of such acts, defendants deprived plaintiff of their rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

115. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

116. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs, Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, K.I., S.S., V.K., and Aya Boulhoujat. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

117. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

118. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

122. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

124. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELTH CAUSE OF ACTION

Failure to Intervene

125. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 124 with the same force and effect as if more fully set forth at length herein.

126. The defendants that did not physically touch plaintiffs, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

127. Defendants failed to intervene to prevent the unlawful conduct described herein.

128. As a result of the foregoing, plaintiffs liberties were restricted for an extended period of time, they were put in fear of their safety, humiliated, and subject to other physical constraints.

129. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

130. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

131. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

132. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

133. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs Brian Milus, Chekanno Aupont, Frantz Nerette Jr., Olivier St. Jean Louis, Ahmed Hegazy, K.I., S.S., V.K., and Aya Boulhoujat demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 14, 2019

By: 
CAITLIN ROBIN AND
ASSOCIATES PLLC
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
JELINSON MARTINEZ, Shield No. 301, 62 Precinct, 1925 Bath Avenue,
Brooklyn, NY 11214

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because the Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
June 14, 2019



CAITLIN ROBIN